Reforms to the secular laws proved simpler. Two years after Becket fled the country, Henry issued another set of decrees, this time making them public at the criminal court held at Clarendon in 1166. The act, known afterwards as the Assize of Clarendon, laid out exactly how criminals were to be tried in the king's courts: by "twelve of the more lawful men . . . upon oath that they will speak the truth."[9]

This system of trial by jury was not new to England, but it had never before been the law of the land, ordered by the king and enforced by his officials. The Assize of Clarendon changed the nature of criminal acts; it transformed them from local, personal insults into offenses against the king's peace and even the king himself. Crime was no longer a parochial affair: "If any sheriff shall send word to another sheriff that men have fled from his county into another county on account of robbery or murder or theft," the assize says, ". . . the sheriff who is informed shall capture them . . . and keep them in custody."[10]

The Assize of Clarendon became the foundation of English criminal law, and the notion at its center is the core of modern Western legislation: the peace of a realm is, in itself, an entity that can be offended; crime is not a personal, but a national, problem. It was a brilliant and nation-changing piece of legislation, pushed through by a man whose restless energy gave him flashes of insight far beyond his century.

But Henry's insight failed him when it came to his archbishop. Increasingly, Becket's principled refusals seemed, in the king's eyes, like personal insults.

In 1170, after years of complicated negotiations between the two men, Henry and Becket traveled to a meadow outside the French town of Freteval, to make a final effort at compromise. This time, both men had trump cards to play. The pope had given Becket the authority to place all of England under an interdict, should Henry not allow him to return. And Becket wanted to take part in the coronation ceremony of Henry's fifteen-year-old son, once his beloved pupil, as Henry's co-ruler and heir.*

The two men met in the center of the meadow and talked, alone, for a long time. No one overheard their conversation, but when the conversation was finished, Henry declared that Becket could return safely to England and take up his authority again; Becket, for his part, would carry out the coronation ceremony, guaranteeing the younger Henry's claim to the throne.

Nothing was said about the Constitutions of Clarendon. Nor was the question of ultimate authority ever raised. It was an agreement that left all of the major issues not only unresolved but apparently undiscussed. And, like most unresolved conflicts, it ended in disaster.